

25NNCV06644 25NNCV06644

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C07%2F07%2F2026

Source SHA-256: 379b3d21bd8b021f7e5d3232772e5ba906539def412ff1ebe287eabf191eceb2

Case Number: 25NNCV06644 Hearing Date: July 7, 2026 Dept: P

[TENTATIVE] ORDER GRANTING DEFENDANTS' MOTION TO SET ASIDE DEFAULTS

I. INTRODUCTION

This insurance coverage action arises from a motor vehicle collision that occurred on August 19, 2024. Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed this action for declaratory relief on September 22, 2025, seeking a judicial determination regarding insurance coverage arising from the accident. Defendants Arshak Pogolian and Zarui Khorozyan ("Defendants") were named as defendants in the action. Defaults were entered against Defendants on April 30, 2026.

On June 9, 2026, Defendants filed the instant motion to set aside the defaults pursuant to Code of Civil Procedure section 473(b). On June 23, 2026, Plaintiff filed an opposition. On June 29, 2026, Defendants filed a reply.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

“Under the discretionary relief provision, on a showing of “mistake, inadvertence, surprise, or excusable neglect,” the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of “mistake, inadvertence, surprise, or neglect,” the court shall vacate any “resulting default judgment or dismissal entered.” [Citation.] Applications seeking relief under the mandatory provision of section 473 must be ‘accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.’ The mandatory provision further adds that ‘whenever relief is granted based on an attorney’s affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.’” (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473, subd. (b).)

III. DISCUSSION

Defendants move for relief from the defaults entered against them pursuant to Code of Civil Procedure section 473(b), contending the defaults resulted from the mistake, inadvertence, and excusable neglect of their counsel. Defendants rely on

the declaration of attorney Stephan Airapetian, who accepts responsibility for the defaults and submits a proposed answer. (Airapetian Decl.; Exh. 6.)

Specifically, Airapetian declares that although his office became aware of Plaintiff's declaratory relief action, his firm failed to monitor the action and failed to ensure that a responsive pleading was timely filed. He explains that there was a miscommunication between his office and Defendants regarding who would contact GEICO and who would be responsible for responding to the complaint. Counsel further states that he believed Defendants were communicating with GEICO and that GEICO would provide a defense and retain counsel to respond to the action. Because of that mistaken belief, his office did not monitor the response deadline or file an answer, resulting in the entry of defaults. Counsel expressly accepts responsibility for allowing the defaults to be entered. Thereafter, GEICO advised counsel that it would not provide a defense, seek to set aside the defaults, or file a responsive pleading on Defendants' behalf. (Airapetian Decl., ¶¶ 7, 12-13.)

Plaintiff argues Defendants have failed to establish entitlement to relief because counsel's declaration consists only of vague and conclusory assertions of "miscommunication" and does not adequately explain the mistake or excusable neglect that caused the defaults. The Court disagrees.

The motion was filed within six months after entry of the defaults and is accompanied by counsel's sworn declaration accepting responsibility for the failure to timely respond to the complaint. Contrary to Plaintiff's contention, counsel does more than merely recite the statutory language. Counsel identifies the specific circumstances that led to the defaults—namely, his mistaken belief that Defendants would communicate with GEICO, that GEICO would undertake Defendants' defense, and his firm's resulting failure to monitor the litigation and ensure that a responsive pleading was filed. Counsel expressly acknowledges that these failures constituted his mistake and accepts responsibility for the defaults. (Airapetian Decl., ¶¶ 7, 13.)

Section 473(b)'s mandatory relief provision is intended to protect litigants from the consequences of their attorney's errors. Where, as here, a timely application is accompanied by an attorney's sworn affidavit admitting fault, the Court is required to vacate the default unless it finds the default was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The record reflects that the defaults were the direct result of counsel's failure to monitor the action and timely file a responsive pleading while mistakenly believing GEICO would assume the defense. There is no evidence that Defendants themselves intentionally failed to respond or that counsel's admitted errors were unrelated to the entry of default.

Further, Plaintiff has not demonstrated any prejudice that would result from setting aside the defaults. No default judgment has been entered, Defendants have submitted a proposed answer, and permitting the matter to proceed on the merits is consistent with California's strong public policy favoring resolution of cases on their merits whenever reasonably possible.

Based on the foregoing, the Court GRANTS Defendants motion to set aside defaults.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendants' motion to set aside defaults. Defendants are to file and serve their proposed answer within 20 days of this ruling.

Defendants are to give notice.

Dated: July 7, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT